

FORM GST DRC-07: SUMMARY OF THE ORDER

Order passed under Section 74(9) of CGST / SGST Act, 2017

ORDER REFERENCE NO: ZA2701240049182	DATE OF ORDER: 22-01-2024
NAME OF TAXPAYER: SHAURYA INFRA PROJECTS LTD.	GSTIN: 27AAACS4321D1Z8
FINANCIAL YEAR: 2019-20	ISSUING AUTHORITY: Deputy Commissioner of State Tax, Nodal-7, Thane

ADVERSE FINDINGS & IRREBUTTABLE REASONS FOR DISALLOWANCE:

1. Intelligence from State Enforcement Wing revealed that M/s Global Trading Syndicate (GSTIN: 27AAHPG9988K1Z5) was a fictitious entity engaged in issuing bogus accommodation invoices without any underlying supply of goods.
2. Physical inspection conducted at the registered premises revealed a 100 sq ft residential tenement with no storage capacity, no inventory of cement or building materials, and no business activity.
3. **Absence of E-Way Bills:** Notice was issued to the taxpayer to furnish E-Way Bills, transporter consignment notes, or toll receipts. The taxpayer admitted that NO E-Way bills were generated for the consignment.
4. **Absence of Transit Evidence:** Under Section 16(2)(b) read with Section 155 of the CGST Act, physical receipt of goods is a mandatory statutory condition. Since no weighbridge slip, vehicle number, or transporter proof was produced, it is established beyond doubt that the transaction was a paper-only arrangement.
5. Fraud, wilful misstatement, and suppression of facts under Section 74(1) stand conclusively established. Demand of tax, interest under Section 50, and 100% penalty is confirmed.

Head	Tax Disallowed (INR)	Interest Sec 50 (INR)	Penalty Sec 74 (INR)	Total Confirmed Demand
Central Tax (CGST)	26,00,000.00	23,40,000.00	26,00,000.00	75,40,000.00
State Tax (SGST)	26,00,000.00	23,40,000.00	26,00,000.00	75,40,000.00
TOTAL	52,00,000.00	46,80,000.00	52,00,000.00	INR 1,50,80,000.00